

1.4 RESTRICTED PREMISES

Restricted premises and sex services premises are permitted within the E2 Commercial Centre Zone under WLEP. The WLEP includes specific controls relating to sex services premises.

This Part provides additional controls relating to sex service premises and restricted premises to ensure their design and location does not negatively impact on the surrounding neighbourhood.

Objectives

- (a) To ensure restricted premises are compatible with the surrounding uses and character of the area.
- (b) To ensure the design, operation and location are appropriate and the cumulative impacts of commercial uses on the surrounding area are minimised.

Controls

- (a) Where a proposed development includes a restricted premises, sex services premises or licensed premises, the following details must be taken into consideration in the assessment of the proposal:
 - (i) The nature and operation of the proposed uses;
 - (ii) Measures to be used for ensuring adequate safety, security and crime prevention both on the site of the premises and in the public domain immediately adjacent to, and generally surrounding the premises;
 - (iii) Proposed hours of operation;
 - (iv) The size and intensity of the proposed development having regard to the number of people who will work on the premises;
 - (v) Proposed management;
 - (vi) Whether the use is proposed to be licensed;
 - (vii) Whether live entertainment is proposed;
 - (viii) The proximity, location and impact of the proposed uses on schools, places of worship, community facilities, major transport, residential buildings and places frequented by children; and
 - (ix) The likely impact on the amenity and desired future character of the street and area.
- (b) No internal rooms or spaces of the sex services premises, other than an access corridor to the premises are to be visible from a public space or shopping arcade.
- (c) No merchandising display relating to the restricted premises is to be erected, or displayed in the access corridor so as to be viewed from a public open space.
- (d) Signage for sex service premises is to be limited to the address or street number.
- (e) To ensure the restricted premises remains discrete, no flashing or illuminated signage is permitted for restricted premises.